

26NNCV01900 26NNCV01900

County: los-angeles

Division: Civil Law and Motion

Department: 3

Hearing date: 2026-08-18

Motion: PLAINTIFF'S MOTION TO COMPEL FURTHER DISCOVERY RESPONSES

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Case Number: 26NNCV01900 Hearing Date: August 18, 2026 Dept: 3

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHEAST
DISTRICT

CHRISTOPHER
M. ZAKHARY,

Plaintiff(s),

vs.

BMW OF
NORTH AMERICA, LLC, et al.,

Defendant(s).

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CASE NO.: 26NNCV01900

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION TO COMPEL FURTHER DISCOVERY RESPONSES

Dept.

3

8:30

a.m.

August

18, 2026

)

Plaintiff Christopher M. Zakhary moves

for an order compelling further responses from defendant BMW of North America, LLC ("Defendant") to Requests for Production of Documents, Set One, Nos. 23-32. No sanctions are requested.

Plaintiff leased a 2023 BMW 530e on

March 10, 2023 and contends the vehicle was delivered with "serious defects and nonconformities to warranty including, but not limited to, emission, engine, electrical and suspension system defects" and developed other serious defects and nonconformities. (Compl., ¶¶ 9, 11.) Plaintiff alleges he presented the vehicle for repairs in December 2023 reporting the "service engine soon" light

illuminating on the instrument cluster. (Compl., ¶ 12.) Subsequently, on three occasions in July, September, and December of 2025, Plaintiff presented the vehicle and reported that the “check engine” light was illuminated. (Compl., ¶¶ 13-15.)

RFP Nos. 23, 25-30: Plaintiff seeks any document which refers or relates to Defendant's Warranty Policy and Procedural Manuals provided to its authorized repair facilities from 2020 to the present. The request is GRANTED in part and limited to Defendant's Warranty Policy and Procedure Manuals provided to Defendant's authorized repair facilities in California from March 10, 2023, to the present (not all documents “referring or relating” to the policies or manuals).

RFP No. 24: DENIED.

RFP No. 30-32: DENIED. These requests are not stated with reasonable particularity and are vague and ambiguous with respect to the defects that affect the vehicle at issue in this action.

Defendant to
give notice.

Dated
this 18th
day of August 2026

William A.
Crowfoot

Judge of the Superior Court

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no

appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.